

The Elephants' Preservation (Assam Amendment) Act, 1959

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State of Assam - Act

The Elephants' Preservation (Assam Amendment) Act, 1959

ASSAM

India

The Elephants' Preservation (Assam Amendment) Act, 1959

Rule THE-ELEPHANTS-PRESERVATION-ASSAM-AMENDMENT-ACT-1959 of 1959

Published on 20 May 1959

Commenced on 20 May 1959

[This is the version of this document from 20 May 1959.]

[Note: The original publication document is not available and this content could not be verified.]

The Elephants' Preservation (Assam Amendment) Act, 1959

Last Updated 11th February, 2020

Published in the Assam Gazette, dated the 20th May, 1959.

[Received the assent of the Governor on the 14th May, 1959].

An [Act]

[Extended in its application to N.E.F.A.]

to amend the Elephants' Preservation Act, 1879 in its application to Assam;

Preamble. - Whereas it is expedient to amend the Elephants' Preservation Act, 1879 (Central Act 6 of 1879) hereinafter called the principal Act, in its application to Assam, in the manner hereinafter appearing;

It is hereby enacted in the Tenth Year of the Republic of India as follows :

1.

Short title, extent and commencement.

(1)

This Act may be called the Elephants' Preservation (Assam Amendment) Act, 1959.

(2)

It shall have the like application as the principal Act.

(3)

It shall come into force at once.

2.

Amendment of Section 5 of Act 6 of 1879.

- In Section 5 of the principal Act, between the words "may" and "subject" the words "with the approval of the State Government and" shall be inserted.

3.

Review and revision.

- After Section 5 of the principal Act, the following section shall be inserted, namely:

"5-A. Any person considering himself aggrieved by an order passed under Section 5 granting licence with the approval of the State Government may file an application for review of the order and the approval, to the State Government within a period of 30 days from the date of the order and thereupon the State Government, after giving a hearing to the parties concerned, may-

(i)

reject the application ; or

(ii)

where it is of opinion that sufficient ground for review has been established, grant the same-

(a)

by withdrawing its approval issued under Section 5 and remand the applications to the Deputy Commissioner concerned for fresh enquiry ; or

(b)

direct the Deputy Commissioner concerned to issue the licence to any of the applicants."

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